

STATE OF NEBRASKA)
) ss
COUNTY OF _____)
(county in which the document will be signed)

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Affidavit for Transfer of Real Property without Probate

I/We, _____, affirm the following to be true and
(your name(s))
acknowledge that any false statements may subject me to penalties of perjury
([Neb. Rev. Stat. § 28-915](#)):

1. Thirty (30) days have passed since the death of _____
(deceased's name)
and I have attached to this affidavit a certified or authenticated copy of the death certificate.
2. The deceased is the sole owner of the real property described as:

3. The value of all the real property in Nebraska belonging to the deceased is \$100,000 or less.
The value of decedent's interest is based on the assessed value of the real property through
the County Assessor/Register of Deeds in the year the decedent's death *minus* real estate
taxes and interest on real estate taxes if any is due at the time of decedent's death.
4. The value of the entire estate (real property *plus* personal property) is \$_____.
5. There is no Personal Representative, application for Personal Representative, or petition for
Personal Representative either pending or granted in another court;
6. I am/We are the _____ of the deceased.
(your relationship to the deceased)
7. I am/We are entitled to the real property by:
☐ reason of the homestead allowance, exempt property allowance, or family allowance;
☐ intestate succession; or
☐ devise under the will of the decedent.

Note: If claiming by devise under the will of the decedent, you must attach a copy of the will to this affidavit.

8. I/We have made an investigation and have been unable to determine any subsequent will.
9. No other person has a right to the real property.
10. I/We will file this affidavit with the register of deeds office of the county in which the real property is located (_____ County).
11. I/We will file the affidavit, a certified or authenticated copy of the death certificate, and a copy of the will (if required) in any other county in Nebraska in which the deceased owns real property that is subject to this affidavit.

Attachment(s): Certified or authenticated copy of death certificate
 Copy of the will, if required

NOTE: Must be signed by ALL persons claiming as successors or parties LEGALLY acting on their behalf.

Date _____ Signature _____
(do NOT sign until a notary is present and witnesses you signing)

Address _____

Date _____ Signature _____
(do NOT sign until a notary is present and witnesses you signing)

Address _____

Date _____ Signature _____
(do NOT sign until a notary is present and witnesses you signing)

Address _____

This document was acknowledged before me by _____,
this _____ day of _____, 20 ____.

Signature of Judge/Clerk of the Court/Notary Public Notary commission expires: _____

Title: _____ Serial Number (if any): _____